

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Butler	Team: Squad #04	CCRB Case #: 201804274	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 09/22/2017 8:17 PM	Location of Incident: One Liberty Plaza	18 Mo. SOL 3/22/2019	Precinct: 01		
Date/Time CV Reported Tue, 05/29/2018 10:49 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 05/29/2018 10:49 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Erdman	15729	941708	001 PCT
2. POM Michael Burke	08036	930342	001 PCT
3. POF Jamie Brantmeyer	19186	941453	001 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Ernest Hernandez	03316	951815	001 PCT
2. SGT Rafael Rodriguez	3275	940661	001 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Burke	Abuse: Police Officer Michael Burke stopped § 87(2)(b)	A . Exonerated
B . POM Michael Erdman	Abuse: Police Officer Michael Erdman stopped § 87(2)(b)	B . Exonerated
C . POF Jamie Brantmeyer	Abuse: Police Officer Jamie Brantmeyer stopped § 87(2)(b)	C . Exonerated
D . POF Jamie Brantmeyer	Abuse: Police Officer Jamie Brantmeyer frisked § 87(2)(b)	D . Exonerated
E . POF Jamie Brantmeyer	Abuse: Police Officer Jamie Brantmeyer searched § 87(2)(b)	E . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint online with the CCRB on May 29, 2018.

On September 22, 2017, at approximately 8:17 p.m., PO Michael Burke, PO Michael Erdman, and PO Jamie Brantmeyer of the 1st Precinct stopped § 87(2)(b) inside of One Liberty Plaza in Manhattan (**Allegations A, B, and C: Abuse of Authority**, § 87(2)(g) PO Brantmeyer frisked § 87(2)(b) (**Allegation D: Abuse of Authority**, § 87(2)(g) PO Brantmeyer allegedly searched § 87(2)(b) (**Allegation E: Abuse of Authority**, § 87(2)(g) § 87(2)(b) was arrested for § 87(2)(b).

There is no video footage of this incident.

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Michael Burke stopped § 87(2)(b)

Allegation B – Abuse of Authority: Police Officer Michael Erdman stopped § 87(2)(b)

Allegation C – Abuse of Authority: Police Officer Jamie Brantmeyer stopped § 87(2)(b)

Allegation D – Abuse of Authority: Police Officer Jamie Brantmeyer frisked § 87(2)(b)

Allegation E – Abuse of Authority: Police Officer Jamie Brantmeyer searched § 87(2)(b)

§ 87(2)(g)

It is undisputed that a female civilian was assaulted by someone who slashed her with a weapon immediately prior to this incident. It is undisputed that the victim called 911, reported the crime, and provided a description of the perpetrator as a bald black male wearing glasses and a light blue shirt. It is undisputed that § 87(2)(b) matched that description in that he was a bald black male wearing glasses and a light blue shirt (BR 16), and it is undisputed that officers stopped § 87(2)(b) two to three blocks away from the location of the crime.

According to § 87(2)(b) (BR 01), he was working as a food delivery courier during the incident. § 87(2)(b) was inside the Fulton Center train station when he received a food delivery order. He walked to a restaurant at 7 Nassau Street, which was approximately three blocks away, picked up the food, and then walked to the delivery location at One Liberty Plaza, which was also approximately three blocks away.

PO Burke, PO Erdman, and PO Brantmeyer approached him inside One Liberty Plaza, identified themselves as police officers, grabbed him, and held him against a desk. PO Brantmeyer frisked § 87(2)(b) all over his body and then allegedly searched him by reaching into his pant pockets.

The officers placed § 87(2)(b) in handcuffs and escorted him outside. They explained that they were looking for someone who committed a slashing, and PO Brantmeyer showed § 87(2)(b) the description of the perpetrator on her cellphone. § 87(2)(b) acknowledged that he matched that exact description but denied involvement in the crime.

Additional officers responded, including PO Ernest Hernandez and Sgt. Rafael Rodriguez of the 1st Precinct, and an ambulance arrived carrying the victim of the alleged slashing. The victim identified § 87(2)(b) as the person who assaulted her, and PO Hernandez placed § 87(2)(b) under arrest and transported him back the 1st Precinct stationhouse.

According to PO Burke (BR 08), PO Erdman (BR 09), and PO Brantmeyer (BR 07), they received the 911 call of the slashing and immediately responded to canvass the area. They saw § 87(2)(b) at Fulton Center and observed that he exactly matched the description of the suspect as a bald black male wearing glasses and a light blue shirt. They followed § 87(2)(b) to the restaurant and then to One Liberty Plaza while communicating with other officers, including PO Hernandez, who were on the scene of the crime.

All the officers suspected § 87(2)(b) of being the perpetrator of the slashing because he matched the description and was in close proximity to the crime scene. The officers approached § 87(2)(b) inside One Liberty Plaza and stopped him based on that suspicion.

According to PO Brantmeyer, she frisked § 87(2)(b) because the 911 call reported that the suspect used a weapon to commit the slashing. She had no other reason for frisking § 87(2)(b). She did not observe any bulges in § 87(2)(b)'s pockets or on his person. She did not discover anything during the frisk. PO Brantmeyer denied that she searched § 87(2)(b). PO Burke and PO Erdman did not recall if PO Brantmeyer frisked or searched § 87(2)(b) and they did not recall seeing any other officer do so.

PO Hernandez (BR 05) arrived on the scene after PO Brantmeyer, PO Erdman, and PO Bruke, stopped § 87(2)(b). He placed § 87(2)(b) under arrest after the victim identified him as the perpetrator of the slashing.

The Event (BR 06) and all the officers' memo books (BR 07-09) confirmed the description of the perpetrator as a bald black male wearing glasses and a light blue shirt.

An officer may stop a person if he or she has a reasonable suspicion that the person has committed, is committing, or is about to commit a crime. An officer may frisk a person if he or she possesses a reasonable suspicion that the person is armed, and an officer may search a person if he or she has probable cause. People v. DeBour, 40 N.Y.2d 201 (1976) (BR 11)

An officer has reasonable suspicion to stop a person if the person matches a description of a perpetrator reported in a radio call, is near the site of the crime, and is observed a short time after the commission of the crime People v. Holland, 4 A.D.3d 375 (2004) (BR 12). An officer has a reasonable suspicion to believe that a person is armed if that person matches the description of a perpetrator reported in a radio call and if the radio call reports that the person used a weapon to commit a crime People v. Williams, 67 A.D.3d 1050 (2009) (BR 13).

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 14).
- PO Brantmeyer has been a member of service for 12 years and has been a subject in two prior complaints and two allegations, neither of which were substantiated. § 87(2)(b)

§ 87(2)(g)

- PO Burke has been a member of service for 15 years and has been a subject in one prior complaint and one allegation, which was not substantiated. § 87(2)(g)
- PO Erdman has been a member of service for 12 years and has been a subject in one prior CCRB complaint, which was successfully mediated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was unsuitable for mediation.
- On August 1, 2018, a Notice of Claim request was submitted to the Comptroller's Office, and the result will be added to the case file upon receipt at the agency.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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